

HOUSE No. 4772

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 19, 2025.

The committee on House Ways and Means to whom was referred the Bill authorizing the Division of Capital Asset Management and Maintenance to grant easements in certain parcels of land to the city of Lowell (House, No. 4183), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 4772).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Division of Capital Asset Management and Maintenance to grant easements in certain parcels of land to the city of Lowell..

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the division of capital asset management and maintenance to grant certain permanent and perpetual easements in the city of Lowell for conservation and recreation purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the
2 General Laws or any other general or special law to the contrary, the commissioner of capital
3 asset management and maintenance, in consultation with the commissioner of conservation and
4 recreation, may grant permanent and perpetual easements located in the city of Lowell, over,
5 under and through portions of property owned by the commonwealth under the care, control and
6 use of the department of conservation and recreation for conservation and recreation purposes, to
7 the city of Lowell, solely for the purposes of construction, maintenance, access, operation,
8 replacement, repair, patrol, abandon and removal of outfall structures and laying of mainline
9 drains.

(b) The grant of easements pursuant to subsection (a) shall be subject to the requirements of: (i) this section and sections 3 through 5, inclusive; and (ii) any additional terms and conditions the commissioner of capital asset management and maintenance, in consultation with the commissioner of conservation and recreation, may prescribe.

(c) The portions of land, over, under and through which the easements may be granted are more particularly described as 3 parcels of land located along the Merrimack river within the city of Lowell, containing approximately 6,750 square feet of land shown as “Permanent Easement” on a plan of land entitled “Bunker Hill Outfall Easement Plan” dated December 2024, prepared by CDM Smith and on file with the city of Lowell. The 3 parcels are a portion of the land described in an Order of Taking recorded in the Middlesex north registry of deeds in book 3830, page 70, which the commonwealth obtained for recreation and conservation purposes. The parcel is further described in a plan of land entitled “Lowell Canal System” recorded in the Middlesex north registry of deeds in plan book 157, plan 69.

(c) The terms of any easement granted pursuant to this section shall require that the easement holder restore the surface condition to the equivalent or better condition as determined by the department of conservation and recreation within 24 months after initiation of installation, maintenance, repair and other work in the easement area.

SECTION 2. (a) The boundaries of any property interests to be conveyed pursuant to section 1 shall be determined by the commissioner of capital asset management and maintenance, in consultation with the commissioner of conservation and recreation after the completion of a survey.

(b) The grantee shall assume the cost of any appraisals, surveys and other expenses deemed necessary by the commissioner of capital asset management and maintenance pursuant to section 1.

SECTION 3. (a)(1) As a condition of the conveyance described in section 1, the city of Lowell shall compensate the commonwealth through improvements to the department of conservation and recreation property in the vicinity of the property described in subsection (c) of section 1.

(2) Said improvements shall have a value: (i) equal to or greater than the fair market value of the property described in section 1, or its value in use as proposed, whichever is greater, as determined by an independent appraisal; or (ii) in a sum equal to the fair market value of the property or its value in use as proposed, whichever is greater, as determined by an independent appraisal; or through some combination thereof.

(b) All money paid to the commonwealth by the city of Lowell pursuant to the conveyance authorized by section 1 shall be deposited in the Conservation Trust established in section 1 of chapter 132A of the General Laws.

(c) Improvements required pursuant to subsection (c) of section 1 by the city of Lowell shall be agreed to in advance by and completed to the satisfaction of the commissioner of conservation and recreation.

SECTION 4. The value of the property described in section 1 shall be determined by an independent professional appraisal prepared in accordance with the usual and customary professional appraisal practice by a qualified appraiser commissioned by the commissioner of capital asset management and maintenance, in consultation with the commissioner of

conservation and recreation. The commissioner of capital asset management and maintenance shall submit the appraisal and a report thereon to the inspector general for review and comment. The inspector general shall review and approve the appraisal, and the review shall include an examination of the methodology utilized for the appraisal. The inspector general shall prepare a report of the review and file the report with the commissioner of capital asset management and maintenance, and the commissioner shall submit copies of the appraisal, the report thereon and the inspector general's review and approval and comments, if any, to the house and senate committees on ways and means and the chairs of the joint committee on state administration and regulatory oversight at least 15 days prior to the execution of the conveyance authorized by this act.

SECTION 5. (a) No instrument conveying, by or on behalf of the commonwealth, an easement described in section 1 shall be valid unless such instrument provides that the easement shall be used solely for the purposes described in section 1. The easement instrument shall include that in the event that the easement ceases to be used by the city of Lowell, or its successors or assigns, for the purposes described in section 1, the easement shall revert to the commonwealth under the care, control and use by the department of conservation and recreation, upon the terms and conditions that the commissioner of capital asset management and maintenance, in consultation with the commissioner of conservation and recreation, may determine.

(b) If the easement reverts to the commonwealth, any further disposition of the easement shall be subject to sections 32 to 38, inclusive of chapter 7C of the General Laws and the prior approval of the general court.